

SOLVED PRACTICE WORKBOOK

Anti-Corruption Institutions - Solved Practice Workbook

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

Anti-Corruption Institutions

TEN-SESSION CORE PATH • PRACTICE • OPTIONAL ADVANCED • REGISTER NOTES

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|---|--|
| 1 Institutional map: why India uses multiple anti-corruption bodies | 2 CVC, CBI, Lokpal and Lokayukta: precise roles and boundaries |
| 3 Jurisdiction and coordination: from authorised complaint to competent forum | 4 Institutional evolution: Santhanam, Vineet Narain, ARC and the enacted Lokpal |
| 5 Prelims-ready design facts without role inflation | 6 Close-option traps: advice, inquiry, investigation, prosecution and adjudication |
| 7 PYQ application: accountability, probity, federalism and institutional reform | 8 Mains analysis: independence, coherence, legitimacy and due process |
| 9 Probable questions and institution-specific answer routes | 10 Study boundaries, reform synthesis and examiner-ready architecture |

Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Anti-Corruption Institutions - Solved Practice Workbook

Generation: learner-v2:g1 **PYQ ownership:** Questions labelled as official reproduce the locally held UPSC GS-IV papers; routed historical demands are explicitly neutral renderings rather than invented quotations.

BASIC MCQS / REMEDIATION

MCQ 1

A department treats an audit alert as conclusive guilt and dismisses an officer without hearing. Which institutional-design principle has been collapsed? Which source-grounded ethical principle most precisely explains the case?

- A. Complaint receipt, preliminary inquiry, evidence-gathering investigation, prosecution before a competent court and adjudication are distinct functions; institutional coordination must connect them without allowing one preliminary finding to become guilt.
- B. The Second Administrative Reforms Commission identified overlapping Union and State anti-corruption bodies as a coherence problem; adding a watchdog helps only when referrals, records, responsibility and follow-up are clearly allocated.
- C. An anti-corruption body needs protected appointments, tenure, resources and decisional space, but independence is not absence of reasons, legislative reporting, judicial review, financial scrutiny or fair procedure.
- D. Credible enforcement requires timely action and insulation from influence, while specificity, confidentiality, hearing, evidence standards and reasoned decisions protect reputation, honest administration and the legitimacy of eventual sanctions.

Answer: A

Explanation: Anti-corruption architecture is stage-separated is the controlling principle. Complaint receipt, preliminary inquiry, evidence-gathering investigation, prosecution before a competent court and adjudication are distinct functions; institutional coordination must connect them without allowing one preliminary finding to become guilt. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 2

A credible complaint is screened, investigated by the competent agency, prosecuted through lawful process and decided by a court. Which architecture is being respected? Which source-grounded ethical principle most precisely explains the case?

- A. An anti-corruption body needs protected appointments, tenure, resources and decisional space, but independence is not absence of reasons, legislative reporting, judicial review, financial scrutiny or fair procedure.
- B. Complaint receipt, preliminary inquiry, evidence-gathering investigation, prosecution before a competent court and adjudication are distinct functions; institutional coordination must connect them without allowing one preliminary finding to become guilt.
- C. Credible enforcement requires timely action and insulation from influence, while specificity, confidentiality, hearing, evidence standards and reasoned decisions protect reputation, honest administration and the legitimacy of eventual sanctions.
- D. The Second Administrative Reforms Commission identified overlapping Union and State anti-corruption bodies as a coherence problem; adding a watchdog helps only when referrals, records, responsibility and follow-up are clearly allocated.

Answer: B

Explanation: Anti-corruption architecture is stage-separated is the controlling principle. Complaint receipt, preliminary inquiry, evidence-gathering investigation, prosecution before a competent court and adjudication are distinct functions; institutional coordination must connect them without allowing one preliminary finding to become guilt. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 3

A Minister-official collusion complaint is repeatedly transferred among bodies until limitation and evidence risks grow. Which structural diagnosis best explains the failure? Which source-grounded ethical principle most precisely explains the case?

- A. Complaint receipt, preliminary inquiry, evidence-gathering investigation, prosecution before a competent court and adjudication are distinct functions; institutional coordination must connect them without allowing one preliminary finding to become guilt.
- B. An anti-corruption body needs protected appointments, tenure, resources and decisional space, but independence is not absence of reasons, legislative reporting, judicial review, financial scrutiny or fair procedure.
- C. The Second Administrative Reforms Commission identified overlapping Union and State anti-corruption bodies as a coherence problem; adding a watchdog helps only when referrals, records, responsibility and follow-up are clearly allocated.
- D. Credible enforcement requires timely action and insulation from influence, while specificity, confidentiality, hearing, evidence standards and reasoned decisions protect reputation, honest administration and the legitimacy of eventual sanctions.

Answer: C

Explanation: **Multiplicity can create overlap without coherence** is the controlling principle. The Second Administrative Reforms Commission identified overlapping Union and State anti-corruption bodies as a coherence problem; adding a watchdog helps only when referrals, records, responsibility and follow-up are clearly allocated. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 4

A referral protocol names the lead body, evidence custodian, reporting deadline and next forum. Which response to institutional multiplicity is illustrated? Which source-grounded ethical principle most precisely explains the case?

- A. An anti-corruption body needs protected appointments, tenure, resources and decisional space, but independence is not absence of reasons, legislative reporting, judicial review, financial scrutiny or fair procedure.
- B. Credible enforcement requires timely action and insulation from influence, while specificity, confidentiality, hearing, evidence standards and reasoned decisions protect reputation, honest administration and the legitimacy of eventual sanctions.
- C. Complaint receipt, preliminary inquiry, evidence-gathering investigation, prosecution before a competent court and adjudication are distinct functions; institutional coordination must connect them without allowing one preliminary finding to become guilt.
- D. The Second Administrative Reforms Commission identified overlapping Union and State anti-corruption bodies as a coherence problem; adding a watchdog helps only when referrals, records, responsibility and follow-up are clearly allocated.

Answer: D

Explanation: **Multiplicity can create overlap without coherence** is the controlling principle. The Second Administrative Reforms Commission identified overlapping Union and State anti-corruption bodies as a coherence problem; adding a watchdog helps only when referrals, records, responsibility and follow-up are clearly allocated. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 5

A watchdog rejects all external review as interference and issues unexplained adverse findings. Which misconception about independence is present? Which source-grounded ethical principle most precisely explains the case?

- A. An anti-corruption body needs protected appointments, tenure, resources and decisional space, but independence is not absence of reasons, legislative reporting, judicial review, financial scrutiny or fair procedure.
- B. Complaint receipt, preliminary inquiry, evidence-gathering investigation, prosecution before a competent court and adjudication are distinct functions; institutional coordination must connect them without allowing one preliminary finding to become guilt.
- C. The Second Administrative Reforms Commission identified overlapping Union and State anti-corruption bodies as a coherence problem; adding a watchdog helps only when referrals, records, responsibility and follow-up are clearly allocated.
- D. Credible enforcement requires timely action and insulation from influence, while specificity, confidentiality, hearing, evidence standards and reasoned decisions protect reputation, honest administration and the legitimacy of eventual sanctions.

Answer: A

Explanation: Independence and accountability must coexist is the controlling principle. An anti-corruption body needs protected appointments, tenure, resources and decisional space, but independence is not absence of reasons, legislative reporting, judicial review, financial scrutiny or fair procedure. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 6

An agency has operational autonomy while publishing aggregate results, recording reasons and remaining subject to courts and audit. Which balanced principle is shown? Which source-grounded ethical principle most precisely explains the case?

- A. The Second Administrative Reforms Commission identified overlapping Union and State anti-corruption bodies as a coherence problem; adding a watchdog helps only when referrals, records, responsibility and follow-up are clearly allocated.
- B. An anti-corruption body needs protected appointments, tenure, resources and decisional space, but independence is not absence of reasons, legislative reporting, judicial review, financial scrutiny or fair procedure.
- C. Credible enforcement requires timely action and insulation from influence, while specificity, confidentiality, hearing, evidence standards and reasoned decisions protect reputation, honest administration and the legitimacy of eventual sanctions.
- D. Complaint receipt, preliminary inquiry, evidence-gathering investigation, prosecution before a competent court and adjudication are distinct functions; institutional coordination must connect them without allowing one preliminary finding to become guilt.

Answer: B

Explanation: Independence and accountability must coexist is the controlling principle. An anti-corruption body needs protected appointments, tenure, resources and decisional space, but independence is not absence of reasons, legislative reporting, judicial review, financial scrutiny or fair procedure. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 7

A complaint naming no transaction is publicised before verification, causing irreversible reputational harm. Which legitimacy safeguard was neglected? Which source-grounded ethical principle most precisely explains the case?

- A. Complaint receipt, preliminary inquiry, evidence-gathering investigation, prosecution before a competent court and adjudication are distinct functions; institutional coordination must connect them without allowing one preliminary finding to become guilt.
- B. The Second Administrative Reforms Commission identified overlapping Union and State anti-corruption bodies as a coherence problem; adding a watchdog helps only when referrals, records, responsibility and follow-up are clearly allocated.
- C. Credible enforcement requires timely action and insulation from influence, while specificity, confidentiality, hearing, evidence standards and reasoned decisions protect reputation, honest administration and the legitimacy of eventual sanctions.
- D. An anti-corruption body needs protected appointments, tenure, resources and decisional space, but independence is not absence of reasons, legislative reporting, judicial review, financial scrutiny or fair procedure.

Answer: C

Explanation: Institutional design must protect public trust and due process is the controlling principle. Credible enforcement requires timely action and insulation from influence, while specificity, confidentiality, hearing, evidence standards and reasoned decisions protect reputation, honest administration and the legitimacy of eventual sanctions. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 8

A body preserves evidence confidentially, defines allegations and gives the affected person a lawful opportunity to respond. Which institutional ethic is applied? Which source-grounded ethical principle most precisely explains the case?

- A. The Second Administrative Reforms Commission identified overlapping Union and State anti-corruption bodies as a coherence problem; adding a watchdog helps only when referrals, records, responsibility and follow-up are clearly allocated.
- B. An anti-corruption body needs protected appointments, tenure, resources and decisional space, but independence is not absence of reasons, legislative reporting, judicial review, financial scrutiny or fair procedure.
- C. Complaint receipt, preliminary inquiry, evidence-gathering investigation, prosecution before a competent court and adjudication are distinct functions; institutional coordination must connect them without allowing one preliminary finding to become guilt.
- D. Credible enforcement requires timely action and insulation from influence, while specificity, confidentiality, hearing, evidence standards and reasoned decisions protect reputation, honest administration and the legitimacy of eventual sanctions.

Answer: D

Explanation: Institutional design must protect public trust and due process is the controlling principle. Credible enforcement requires timely action and insulation from influence, while specificity, confidentiality, hearing, evidence standards and reasoned decisions protect reputation, honest administration and the legitimacy of eventual sanctions. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 9

A ministry states that CVC advice itself proves criminal guilt. Which role boundary corrects this claim? Which source-grounded ethical principle most precisely explains the case?

- A. The Central Vigilance Commission advises on vigilance administration and exercises statutory superintendence over the Delhi Special Police Establishment for specified corruption investigations; it does not itself convict or impose a criminal sentence.
- B. CVC superintendence concerns the Delhi Special Police Establishment's investigation of offences under the Prevention of Corruption Act and connected trial offences; it is not general command over every CBI investigation.
- C. Vigilance advice informs the competent government's or organisation's decision, but the lawful disciplinary authority must independently apply service rules, evidence, hearing requirements and reasons before imposing a penalty.
- D. A Chief Vigilance Officer coordinates preventive vigilance, examines complaints and suspected vigilance matters, supports disciplinary routing and interfaces with the CVC; the CVO is not an independent criminal court or a substitute for investigators.

Answer: A

Explanation: CVC is advisory and superintending, not a trial court is the controlling principle. The Central Vigilance Commission advises on vigilance administration and exercises statutory superintendence over the Delhi Special Police Establishment for specified corruption investigations; it does not itself convict or impose a criminal sentence. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 10

The Commission reviews vigilance handling while a competent court determines guilt after prosecution. Which institutional distinction is maintained? Which source-grounded ethical principle most precisely explains the case?

- A. Vigilance advice informs the competent government's or organisation's decision, but the lawful disciplinary authority must independently apply service rules, evidence, hearing requirements and reasons before imposing a penalty.
- B. The Central Vigilance Commission advises on vigilance administration and exercises statutory superintendence over the Delhi Special Police Establishment for specified corruption investigations; it does not itself convict or impose a criminal sentence.
- C. A Chief Vigilance Officer coordinates preventive vigilance, examines complaints and suspected vigilance matters, supports disciplinary routing and interfaces with the CVC; the CVO is not an independent criminal court or a substitute for investigators.
- D. CVC superintendence concerns the Delhi Special Police Establishment's investigation of offences under the Prevention of Corruption Act and connected trial offences; it is not general command over every CBI investigation.

Answer: B

Explanation: CVC is advisory and superintending, not a trial court is the controlling principle. The Central Vigilance Commission advises on vigilance administration and exercises statutory superintendence over the Delhi Special Police Establishment for specified corruption investigations; it does not itself convict or impose a criminal sentence. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 11

A candidate says the CVC directs all CBI work, including every unrelated special-crime case. Which statutory limitation has been missed? Which source-grounded ethical principle most precisely explains the case?

- A. The Central Vigilance Commission advises on vigilance administration and exercises statutory superintendence over the Delhi Special Police Establishment for specified corruption investigations; it does not itself convict or impose a criminal sentence.
- B. Vigilance advice informs the competent government's or organisation's decision, but the lawful disciplinary authority must independently apply service rules, evidence, hearing requirements and reasons before imposing a penalty.
- C. CVC superintendence concerns the Delhi Special Police Establishment's investigation of offences under the Prevention of Corruption Act and connected trial offences; it is not general command over every CBI investigation.
- D. A Chief Vigilance Officer coordinates preventive vigilance, examines complaints and suspected vigilance matters, supports disciplinary routing and interfaces with the CVC; the CVO is not an independent criminal court or a substitute for investigators.

Answer: C

Explanation: CVC superintendence over CBI is subject-matter limited is the controlling principle. CVC superintendence concerns the Delhi Special Police Establishment's investigation of offences under the Prevention of Corruption Act and connected trial offences; it is not general command over every CBI investigation. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 12

The Commission reviews progress in a corruption investigation but does not demand a predetermined outcome in a particular case. Which boundary is respected? Which source-grounded ethical principle most precisely explains the case?

- A. Vigilance advice informs the competent government's or organisation's decision, but the lawful disciplinary authority must independently apply service rules, evidence, hearing requirements and reasons before imposing a penalty.
- B. A Chief Vigilance Officer coordinates preventive vigilance, examines complaints and suspected vigilance matters, supports disciplinary routing and interfaces with the CVC; the CVO is not an independent criminal court or a substitute for investigators.
- C. The Central Vigilance Commission advises on vigilance administration and exercises statutory superintendence over the Delhi Special Police Establishment for specified corruption investigations; it does not itself convict or impose a criminal sentence.
- D. CVC superintendence concerns the Delhi Special Police Establishment's investigation of offences under the Prevention of Corruption Act and connected trial offences; it is not general command over every CBI investigation.

Answer: D

Explanation: CVC superintendence over CBI is subject-matter limited is the controlling principle. CVC superintendence concerns the Delhi Special Police Establishment's investigation of offences under the Prevention of Corruption Act and connected trial offences; it is not general command over every CBI investigation. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 13

A public enterprise mechanically punishes an employee because a vigilance opinion was received, without conducting the required proceeding. What has it displaced? Which source-grounded ethical principle most precisely explains the case?

- A. Vigilance advice informs the competent government's or organisation's decision, but the lawful disciplinary authority must independently apply service rules, evidence, hearing requirements and reasons before imposing a penalty.
- B. The Central Vigilance Commission advises on vigilance administration and exercises statutory superintendence over the Delhi Special Police Establishment for specified corruption investigations; it does not itself convict or impose a criminal sentence.
- C. CVC superintendence concerns the Delhi Special Police Establishment's investigation of offences under the Prevention of Corruption Act and connected trial offences; it is not general command over every CBI investigation.
- D. A Chief Vigilance Officer coordinates preventive vigilance, examines complaints and suspected vigilance matters, supports disciplinary routing and interfaces with the CVC; the CVO is not an independent criminal court or a substitute for investigators.

Answer: A

Explanation: CVC advice does not replace the disciplinary authority is the controlling principle. Vigilance advice informs the competent government's or organisation's decision, but the lawful disciplinary authority must independently apply service rules, evidence, hearing requirements and reasons before imposing a penalty. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 14

The disciplinary authority considers vigilance advice, records its own findings and follows the applicable procedure. Which allocation of responsibility is correct? Which source-grounded ethical principle most precisely explains the case?

- A. CVC superintendence concerns the Delhi Special Police Establishment's investigation of offences under the Prevention of Corruption Act and connected trial offences; it is not general command over every CBI investigation.
- B. Vigilance advice informs the competent government's or organisation's decision, but the lawful disciplinary authority must independently apply service rules, evidence, hearing requirements and reasons before imposing a penalty.
- C. A Chief Vigilance Officer coordinates preventive vigilance, examines complaints and suspected vigilance matters, supports disciplinary routing and interfaces with the CVC; the CVO is not an independent criminal court or a substitute for investigators.
- D. The Central Vigilance Commission advises on vigilance administration and exercises statutory superintendence over the Delhi Special Police Establishment for specified corruption investigations; it does not itself convict or impose a criminal sentence.

Answer: B

Explanation: CVC advice does not replace the disciplinary authority is the controlling principle. Vigilance advice informs the competent government's or organisation's decision, but the lawful disciplinary authority must independently apply service rules, evidence, hearing requirements and reasons before imposing a penalty. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 15

A ministry asks its CVO to pronounce a criminal sentence after checking a procurement complaint. Which role inflation is involved? Which source-grounded ethical principle most precisely explains the case?

- A. The Central Vigilance Commission advises on vigilance administration and exercises statutory superintendence over the Delhi Special Police Establishment for specified corruption investigations; it does not itself convict or impose a criminal sentence.
- B. CVC superintendence concerns the Delhi Special Police Establishment's investigation of offences under the Prevention of Corruption Act and connected trial offences; it is not general command over every CBI investigation.
- C. A Chief Vigilance Officer coordinates preventive vigilance, examines complaints and suspected vigilance matters, supports disciplinary routing and interfaces with the CVC; the CVO is not an independent criminal court or a substitute for investigators.
- D. Vigilance advice informs the competent government's or organisation's decision, but the lawful disciplinary authority must independently apply service rules, evidence, hearing requirements and reasons before imposing a penalty.

Answer: C

Explanation: A departmental CVO is the internal vigilance node is the controlling principle. A Chief Vigilance Officer coordinates preventive vigilance, examines complaints and suspected vigilance matters, supports disciplinary routing and interfaces with the CVC; the CVO is not an independent criminal court or a substitute for investigators. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 16

A CVO secures records, examines the vigilance angle and refers suspected criminality through the competent channel. Which departmental function is illustrated? Which source-grounded ethical principle most precisely explains the case?

- A. CVC superintendence concerns the Delhi Special Police Establishment's investigation of offences under the Prevention of Corruption Act and connected trial offences; it is not general command over every CBI investigation.
- B. Vigilance advice informs the competent government's or organisation's decision, but the lawful disciplinary authority must independently apply service rules, evidence, hearing requirements and reasons before imposing a penalty.
- C. The Central Vigilance Commission advises on vigilance administration and exercises statutory superintendence over the Delhi Special Police Establishment for specified corruption investigations; it does not itself convict or impose a criminal sentence.
- D. A Chief Vigilance Officer coordinates preventive vigilance, examines complaints and suspected vigilance matters, supports disciplinary routing and interfaces with the CVC; the CVO is not an independent criminal court or a substitute for investigators.

Answer: D

Explanation: A departmental CVO is the internal vigilance node is the controlling principle. A Chief Vigilance Officer coordinates preventive vigilance, examines complaints and suspected vigilance matters, supports disciplinary routing and interfaces with the CVC; the CVO is not an independent criminal court or a substitute for investigators. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 17

An answer describes the CBI itself as a body created directly by the DSPE Act. Which precision correction is required? Which source-grounded ethical principle most precisely explains the case?

- A. The Central Bureau of Investigation was created by executive resolution, while its police powers for investigation derive from the Delhi Special Police Establishment Act; the institutional name and statutory source should not be conflated.
- B. The Union may extend Delhi Special Police Establishment jurisdiction to a State, but ordinary exercise of those police powers within that State requires its consent, whether general or case-specific, under the federal statutory arrangement.
- C. State consent is not an absolute bar because the Supreme Court under Article 32 and High Courts under Article 226 may direct a CBI investigation to enforce fundamental rights and constitutional justice, using that exceptional power cautiously.
- D. CBI may register and investigate cases within lawful jurisdiction and its prosecutors may conduct cases before competent courts, but charges and agency conclusions remain allegations until the court adjudicates responsibility.

Answer: A

Explanation: CBI draws police powers from the DSPE Act is the controlling principle. The Central Bureau of Investigation was created by executive resolution, while its police powers for investigation derive from the Delhi Special Police Establishment Act; the institutional name and statutory source should not be conflated. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 18

An investigator identifies the DSPE Act as the source of police powers while separately noting the CBI's executive creation. Which distinction is correct? Which source-grounded ethical principle most precisely explains the case?

- A. State consent is not an absolute bar because the Supreme Court under Article 32 and High Courts under Article 226 may direct a CBI investigation to enforce fundamental rights and constitutional justice, using that exceptional power cautiously.
- B. The Central Bureau of Investigation was created by executive resolution, while its police powers for investigation derive from the Delhi Special Police Establishment Act; the institutional name and statutory source should not be conflated.
- C. CBI may register and investigate cases within lawful jurisdiction and its prosecutors may conduct cases before competent courts, but charges and agency conclusions remain allegations until the court adjudicates responsibility.
- D. The Union may extend Delhi Special Police Establishment jurisdiction to a State, but ordinary exercise of those police powers within that State requires its consent, whether general or case-specific, under the federal statutory arrangement.

Answer: B

Explanation: CBI draws police powers from the DSPE Act is the controlling principle. The Central Bureau of Investigation was created by executive resolution, while its police powers for investigation derive from the Delhi Special Police Establishment Act; the institutional name and statutory source should not be conflated. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 19

The Union executive directs a fresh CBI police investigation wholly within a State that has not consented. Which federal requirement arises? Which source-grounded ethical principle most precisely explains the case?

- A. The Central Bureau of Investigation was created by executive resolution, while its police powers for investigation derive from the Delhi Special Police Establishment Act; the institutional name and statutory source should not be conflated.
- B. State consent is not an absolute bar because the Supreme Court under Article 32 and High Courts under Article 226 may direct a CBI investigation to enforce fundamental rights and constitutional justice, using that exceptional power cautiously.
- C. The Union may extend Delhi Special Police Establishment jurisdiction to a State, but ordinary exercise of those police powers within that State requires its consent, whether general or case-specific, under the federal statutory arrangement.
- D. CBI may register and investigate cases within lawful jurisdiction and its prosecutors may conduct cases before competent courts, but charges and agency conclusions remain allegations until the court adjudicates responsibility.

Answer: C

Explanation: State consent ordinarily controls DSPE extension is the controlling principle. The Union may extend Delhi Special Police Establishment jurisdiction to a State, but ordinary exercise of those police powers within that State requires its consent, whether general or case-specific, under the federal statutory arrangement. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 20

A State grants case-specific consent after withdrawing general consent. What lawful route enables the CBI to exercise DSPE powers there? Which source-grounded ethical principle most precisely explains the case?

- A. State consent is not an absolute bar because the Supreme Court under Article 32 and High Courts under Article 226 may direct a CBI investigation to enforce fundamental rights and constitutional justice, using that exceptional power cautiously.
- B. CBI may register and investigate cases within lawful jurisdiction and its prosecutors may conduct cases before competent courts, but charges and agency conclusions remain allegations until the court adjudicates responsibility.
- C. The Central Bureau of Investigation was created by executive resolution, while its police powers for investigation derive from the Delhi Special Police Establishment Act; the institutional name and statutory source should not be conflated.
- D. The Union may extend Delhi Special Police Establishment jurisdiction to a State, but ordinary exercise of those police powers within that State requires its consent, whether general or case-specific, under the federal statutory arrangement.

Answer: D

Explanation: State consent ordinarily controls DSPE extension is the controlling principle. The Union may extend Delhi Special Police Establishment jurisdiction to a State, but ordinary exercise of those police powers within that State requires its consent, whether general or case-specific, under the federal statutory arrangement. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 21

A State argues that withdrawal of general consent prevents even a High Court from ordering a CBI probe. Which constitutional caveat answers the claim? Which source-grounded ethical principle most precisely explains the case?

A. State consent is not an absolute bar because the Supreme Court under Article 32 and High Courts under Article 226 may direct a CBI investigation to enforce fundamental rights and constitutional justice, using that exceptional power cautiously.

B. The Central Bureau of Investigation was created by executive resolution, while its police powers for investigation derive from the Delhi Special Police Establishment Act; the institutional name and statutory source should not be conflated.

C. The Union may extend Delhi Special Police Establishment jurisdiction to a State, but ordinary exercise of those police powers within that State requires its consent, whether general or case-specific, under the federal statutory arrangement.

D. CBI may register and investigate cases within lawful jurisdiction and its prosecutors may conduct cases before competent courts, but charges and agency conclusions remain allegations until the court adjudicates responsibility.

Answer: A

Explanation: **Constitutional courts form the consent caveat** is the controlling principle. State consent is not an absolute bar because the Supreme Court under Article 32 and High Courts under Article 226 may direct a CBI investigation to enforce fundamental rights and constitutional justice, using that exceptional power cautiously. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 22

A High Court orders an exceptional CBI investigation after recording constitutional reasons. Why is ordinary executive consent analysis not decisive? Which source-grounded ethical principle most precisely explains the case?

A. The Union may extend Delhi Special Police Establishment jurisdiction to a State, but ordinary exercise of those police powers within that State requires its consent, whether general or case-specific, under the federal statutory arrangement.

B. State consent is not an absolute bar because the Supreme Court under Article 32 and High Courts under Article 226 may direct a CBI investigation to enforce fundamental rights and constitutional justice, using that exceptional power cautiously.

C. CBI may register and investigate cases within lawful jurisdiction and its prosecutors may conduct cases before competent courts, but charges and agency conclusions remain allegations until the court adjudicates responsibility.

D. The Central Bureau of Investigation was created by executive resolution, while its police powers for investigation derive from the Delhi Special Police Establishment Act; the institutional name and statutory source should not be conflated.

Answer: B

Explanation: **Constitutional courts form the consent caveat** is the controlling principle. State consent is not an absolute bar because the Supreme Court under Article 32 and High Courts under Article 226 may direct a CBI investigation to enforce fundamental rights and constitutional justice, using that exceptional power cautiously. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 23

A press release calls an accused person guilty immediately after a charge sheet. Which investigation-adjudication distinction is violated? Which source-grounded ethical principle most precisely explains the case?

- A. The Central Bureau of Investigation was created by executive resolution, while its police powers for investigation derive from the Delhi Special Police Establishment Act; the institutional name and statutory source should not be conflated.
- B. The Union may extend Delhi Special Police Establishment jurisdiction to a State, but ordinary exercise of those police powers within that State requires its consent, whether general or case-specific, under the federal statutory arrangement.
- C. CBI may register and investigate cases within lawful jurisdiction and its prosecutors may conduct cases before competent courts, but charges and agency conclusions remain allegations until the court adjudicates responsibility.
- D. State consent is not an absolute bar because the Supreme Court under Article 32 and High Courts under Article 226 may direct a CBI investigation to enforce fundamental rights and constitutional justice, using that exceptional power cautiously.

Answer: C

Explanation: CBI investigation is not adjudication is the controlling principle. CBI may register and investigate cases within lawful jurisdiction and its prosecutors may conduct cases before competent courts, but charges and agency conclusions remain allegations until the court adjudicates responsibility. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 24

An agency presents tested evidence through prosecution while the court independently determines guilt. Which separation preserves legitimacy? Which source-grounded ethical principle most precisely explains the case?

- A. The Union may extend Delhi Special Police Establishment jurisdiction to a State, but ordinary exercise of those police powers within that State requires its consent, whether general or case-specific, under the federal statutory arrangement.
- B. State consent is not an absolute bar because the Supreme Court under Article 32 and High Courts under Article 226 may direct a CBI investigation to enforce fundamental rights and constitutional justice, using that exceptional power cautiously.
- C. The Central Bureau of Investigation was created by executive resolution, while its police powers for investigation derive from the Delhi Special Police Establishment Act; the institutional name and statutory source should not be conflated.
- D. CBI may register and investigate cases within lawful jurisdiction and its prosecutors may conduct cases before competent courts, but charges and agency conclusions remain allegations until the court adjudicates responsibility.

Answer: D

Explanation: CBI investigation is not adjudication is the controlling principle. CBI may register and investigate cases within lawful jurisdiction and its prosecutors may conduct cases before competent courts, but charges and agency conclusions remain allegations until the court adjudicates responsibility. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 25

A candidate attributes the enacted Chairperson-plus-eight-member structure directly to the ARC's three-member proposal. Which historical distinction is missing? Which source-grounded ethical principle most precisely explains the case?

- A. The Second Administrative Reforms Commission proposed a three-member Lok Pal for Ministers and Members of Parliament with the CVC ex officio, whereas the 2013 law enacted a broader and differently composed institution.
- B. The Lokpal consists of a Chairperson and not more than eight Members; at least half the Members must be judicial, and at least half must come from the specified social categories, minorities and women.
- C. The enacted Lokpal covers the Prime Minister subject to safeguards, Union Ministers, Members of Parliament, central officials and specified funded or foreign-contribution bodies, while preserving express exclusions and procedural conditions.
- D. Lokpal may order preliminary inquiry through its Inquiry Wing or another agency and may refer investigation to a competent agency, including CBI in appropriate cases; referral does not convert the ombudsman into the adjudicating court.

Answer: A

Explanation: ARC's Lok Pal proposal and the enacted Lokpal differ is the controlling principle. The Second Administrative Reforms Commission proposed a three-member Lok Pal for Ministers and Members of Parliament with the CVC ex officio, whereas the 2013 law enacted a broader and differently composed institution. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 26

An answer first states the 2007 recommendation and then separately explains the 2013 enacted design. Which source discipline is demonstrated? Which source-grounded ethical principle most precisely explains the case?

- A. The enacted Lokpal covers the Prime Minister subject to safeguards, Union Ministers, Members of Parliament, central officials and specified funded or foreign-contribution bodies, while preserving express exclusions and procedural conditions.
- B. The Second Administrative Reforms Commission proposed a three-member Lok Pal for Ministers and Members of Parliament with the CVC ex officio, whereas the 2013 law enacted a broader and differently composed institution.
- C. Lokpal may order preliminary inquiry through its Inquiry Wing or another agency and may refer investigation to a competent agency, including CBI in appropriate cases; referral does not convert the ombudsman into the adjudicating court.
- D. The Lokpal consists of a Chairperson and not more than eight Members; at least half the Members must be judicial, and at least half must come from the specified social categories, minorities and women.

Answer: B

Explanation: ARC's Lok Pal proposal and the enacted Lokpal differ is the controlling principle. The Second Administrative Reforms Commission proposed a three-member Lok Pal for Ministers and Members of Parliament with the CVC ex officio, whereas the 2013 law enacted a broader and differently composed institution. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 27

An option says every Lokpal Member must be a judge. Which composition rule makes it incorrect? Which source-grounded ethical principle most precisely explains the case?

- A. The Second Administrative Reforms Commission proposed a three-member Lok Pal for Ministers and Members of Parliament with the CVC ex officio, whereas the 2013 law enacted a broader and differently composed institution.
- B. The enacted Lokpal covers the Prime Minister subject to safeguards, Union Ministers, Members of Parliament, central officials and specified funded or foreign-contribution bodies, while preserving express exclusions and procedural conditions.
- C. The Lokpal consists of a Chairperson and not more than eight Members; at least half the Members must be judicial, and at least half must come from the specified social categories, minorities and women.
- D. Lokpal may order preliminary inquiry through its Inquiry Wing or another agency and may refer investigation to a competent agency, including CBI in appropriate cases; referral does not convert the ombudsman into the adjudicating court.

Answer: C

Explanation: Enacted Lokpal combines judicial membership and representation is the controlling principle. The Lokpal consists of a Chairperson and not more than eight Members; at least half the Members must be judicial, and at least half must come from the specified social categories, minorities and women. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 28

A selection process must respect both the judicial-member floor and the statutory representation requirement. Which enacted design feature is involved? Which source-grounded ethical principle most precisely explains the case?

- A. The enacted Lokpal covers the Prime Minister subject to safeguards, Union Ministers, Members of Parliament, central officials and specified funded or foreign-contribution bodies, while preserving express exclusions and procedural conditions.
- B. Lokpal may order preliminary inquiry through its Inquiry Wing or another agency and may refer investigation to a competent agency, including CBI in appropriate cases; referral does not convert the ombudsman into the adjudicating court.
- C. The Second Administrative Reforms Commission proposed a three-member Lok Pal for Ministers and Members of Parliament with the CVC ex officio, whereas the 2013 law enacted a broader and differently composed institution.
- D. The Lokpal consists of a Chairperson and not more than eight Members; at least half the Members must be judicial, and at least half must come from the specified social categories, minorities and women.

Answer: D

Explanation: Enacted Lokpal combines judicial membership and representation is the controlling principle. The Lokpal consists of a Chairperson and not more than eight Members; at least half the Members must be judicial, and at least half must come from the specified social categories, minorities and women. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 29

A statement claims Lokpal jurisdiction extends without qualification to every person and every public controversy in India. Which correction is required? Which source-grounded ethical principle most precisely explains the case?

- A. The enacted Lokpal covers the Prime Minister subject to safeguards, Union Ministers, Members of Parliament, central officials and specified funded or foreign-contribution bodies, while preserving express exclusions and procedural conditions.
- B. The Second Administrative Reforms Commission proposed a three-member Lok Pal for Ministers and Members of Parliament with the CVC ex officio, whereas the 2013 law enacted a broader and differently composed institution.
- C. The Lokpal consists of a Chairperson and not more than eight Members; at least half the Members must be judicial, and at least half must come from the specified social categories, minorities and women.
- D. Lokpal may order preliminary inquiry through its Inquiry Wing or another agency and may refer investigation to a competent agency, including CBI in appropriate cases; referral does not convert the ombudsman into the adjudicating court.

Answer: A

Explanation: Lokpal jurisdiction is broad but legally bounded is the controlling principle. The enacted Lokpal covers the Prime Minister subject to safeguards, Union Ministers, Members of Parliament, central officials and specified funded or foreign-contribution bodies, while preserving express exclusions and procedural conditions. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 30

A complaint is first tested against the office, subject matter, funding category and statutory conditions. Which jurisdictional discipline is being applied? Which source-grounded ethical principle most precisely explains the case?

- A. The Lokpal consists of a Chairperson and not more than eight Members; at least half the Members must be judicial, and at least half must come from the specified social categories, minorities and women.
- B. The enacted Lokpal covers the Prime Minister subject to safeguards, Union Ministers, Members of Parliament, central officials and specified funded or foreign-contribution bodies, while preserving express exclusions and procedural conditions.
- C. Lokpal may order preliminary inquiry through its Inquiry Wing or another agency and may refer investigation to a competent agency, including CBI in appropriate cases; referral does not convert the ombudsman into the adjudicating court.
- D. The Second Administrative Reforms Commission proposed a three-member Lok Pal for Ministers and Members of Parliament with the CVC ex officio, whereas the 2013 law enacted a broader and differently composed institution.

Answer: B

Explanation: Lokpal jurisdiction is broad but legally bounded is the controlling principle. The enacted Lokpal covers the Prime Minister subject to safeguards, Union Ministers, Members of Parliament, central officials and specified funded or foreign-contribution bodies, while preserving express exclusions and procedural conditions. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 31

A complaint is within Lokpal jurisdiction, so an answer says the Lokpal itself must perform every evidence-gathering and trial function. Which design feature disproves this? Which source-grounded ethical principle most precisely explains the case?

- A. The Second Administrative Reforms Commission proposed a three-member Lok Pal for Ministers and Members of Parliament with the CVC ex officio, whereas the 2013 law enacted a broader and differently composed institution.
- B. The Lokpal consists of a Chairperson and not more than eight Members; at least half the Members must be judicial, and at least half must come from the specified social categories, minorities and women.
- C. Lokpal may order preliminary inquiry through its Inquiry Wing or another agency and may refer investigation to a competent agency, including CBI in appropriate cases; referral does not convert the ombudsman into the adjudicating court.
- D. The enacted Lokpal covers the Prime Minister subject to safeguards, Union Ministers, Members of Parliament, central officials and specified funded or foreign-contribution bodies, while preserving express exclusions and procedural conditions.

Answer: C

Explanation: Lokpal may use inquiry and investigating agencies is the controlling principle. Lokpal may order preliminary inquiry through its Inquiry Wing or another agency and may refer investigation to a competent agency, including CBI in appropriate cases; referral does not convert the ombudsman into the adjudicating court. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 32

Lokpal directs a referred investigation, reviews progress and later uses the lawful prosecution route. Which coordinated model is illustrated? Which source-grounded ethical principle most precisely explains the case?

- A. The Lokpal consists of a Chairperson and not more than eight Members; at least half the Members must be judicial, and at least half must come from the specified social categories, minorities and women.
- B. The enacted Lokpal covers the Prime Minister subject to safeguards, Union Ministers, Members of Parliament, central officials and specified funded or foreign-contribution bodies, while preserving express exclusions and procedural conditions.
- C. The Second Administrative Reforms Commission proposed a three-member Lok Pal for Ministers and Members of Parliament with the CVC ex officio, whereas the 2013 law enacted a broader and differently composed institution.
- D. Lokpal may order preliminary inquiry through its Inquiry Wing or another agency and may refer investigation to a competent agency, including CBI in appropriate cases; referral does not convert the ombudsman into the adjudicating court.

Answer: D

Explanation: Lokpal may use inquiry and investigating agencies is the controlling principle. Lokpal may order preliminary inquiry through its Inquiry Wing or another agency and may refer investigation to a competent agency, including CBI in appropriate cases; referral does not convert the ombudsman into the adjudicating court. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 33

An option says the Prime Minister is completely outside Lokpal jurisdiction. Which enacted compromise makes that option false? Which source-grounded ethical principle most precisely explains the case?

- A. The 2013 law includes the Prime Minister but excludes allegations relating to international relations, external or internal security, public order, atomic energy and space, and requires enhanced approval and confidentiality safeguards.
- B. The ARC treated government continuity under the Westminster model as the reason to keep a sitting Prime Minister outside formal Lok Pal inquiry, relying on Parliamentary confidence rather than claiming personal immunity from accountability.
- C. The 2013 law required States to establish Lokayuktas within one year of commencement but did not prescribe one uniform national model; composition, jurisdiction, powers, appointment arrangements and practical independence therefore vary under State laws.
- D. A State Anti-Corruption Bureau ordinarily performs police investigation within the State framework, while a Lokayukta performs the ombudsman role assigned by its State law; exact powers must be checked jurisdiction by jurisdiction.

Answer: A

Explanation: Prime Minister jurisdiction is qualified, not absent is the controlling principle. The 2013 law includes the Prime Minister but excludes allegations relating to international relations, external or internal security, public order, atomic energy and space, and requires enhanced approval and confidentiality safeguards. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 34

A complaint concerning an unexcluded subject is considered by the full bench under the special threshold and in-camera process. Which qualified jurisdiction applies? Which source-grounded ethical principle most precisely explains the case?

- A. The 2013 law required States to establish Lokayuktas within one year of commencement but did not prescribe one uniform national model; composition, jurisdiction, powers, appointment arrangements and practical independence therefore vary under State laws.
- B. The 2013 law includes the Prime Minister but excludes allegations relating to international relations, external or internal security, public order, atomic energy and space, and requires enhanced approval and confidentiality safeguards.
- C. A State Anti-Corruption Bureau ordinarily performs police investigation within the State framework, while a Lokayukta performs the ombudsman role assigned by its State law; exact powers must be checked jurisdiction by jurisdiction.
- D. The ARC treated government continuity under the Westminster model as the reason to keep a sitting Prime Minister outside formal Lok Pal inquiry, relying on Parliamentary confidence rather than claiming personal immunity from accountability.

Answer: B

Explanation: Prime Minister jurisdiction is qualified, not absent is the controlling principle. The 2013 law includes the Prime Minister but excludes allegations relating to international relations, external or internal security, public order, atomic energy and space, and requires enhanced approval and confidentiality safeguards. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 35

A student says the ARC believed the Prime Minister should never be answerable. Which nuance corrects the interpretation? Which source-grounded ethical principle most precisely explains the case?

- A. The 2013 law includes the Prime Minister but excludes allegations relating to international relations, external or internal security, public order, atomic energy and space, and requires enhanced approval and confidentiality safeguards.
- B. The 2013 law required States to establish Lokayuktas within one year of commencement but did not prescribe one uniform national model; composition, jurisdiction, powers, appointment arrangements and practical independence therefore vary under State laws.
- C. The ARC treated government continuity under the Westminster model as the reason to keep a sitting Prime Minister outside formal Lok Pal inquiry, relying on Parliamentary confidence rather than claiming personal immunity from accountability.
- D. A State Anti-Corruption Bureau ordinarily performs police investigation within the State framework, while a Lokayukta performs the ombudsman role assigned by its State law; exact powers must be checked jurisdiction by jurisdiction.

Answer: C

Explanation: ARC preferred Parliamentary scrutiny of a sitting Prime Minister is the controlling principle. The ARC treated government continuity under the Westminster model as the reason to keep a sitting Prime Minister outside formal Lok Pal inquiry, relying on Parliamentary confidence rather than claiming personal immunity from accountability. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 36

An answer contrasts Parliamentary confidence accountability with the enacted qualified Lokpal route. Which institutional debate is accurately framed? Which source-grounded ethical principle most precisely explains the case?

- A. The 2013 law required States to establish Lokayuktas within one year of commencement but did not prescribe one uniform national model; composition, jurisdiction, powers, appointment arrangements and practical independence therefore vary under State laws.
- B. A State Anti-Corruption Bureau ordinarily performs police investigation within the State framework, while a Lokayukta performs the ombudsman role assigned by its State law; exact powers must be checked jurisdiction by jurisdiction.
- C. The 2013 law includes the Prime Minister but excludes allegations relating to international relations, external or internal security, public order, atomic energy and space, and requires enhanced approval and confidentiality safeguards.
- D. The ARC treated government continuity under the Westminster model as the reason to keep a sitting Prime Minister outside formal Lok Pal inquiry, relying on Parliamentary confidence rather than claiming personal immunity from accountability.

Answer: D

Explanation: ARC preferred Parliamentary scrutiny of a sitting Prime Minister is the controlling principle. The ARC treated government continuity under the Westminster model as the reason to keep a sitting Prime Minister outside formal Lok Pal inquiry, relying on Parliamentary confidence rather than claiming personal immunity from accountability. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 37

An option assumes every State Lokayukta has the same composition and jurisdiction as Lokpal. Which federal fact defeats it? Which source-grounded ethical principle most precisely explains the case?

- A. The 2013 law required States to establish Lokayuktas within one year of commencement but did not prescribe one uniform national model; composition, jurisdiction, powers, appointment arrangements and practical independence therefore vary under State laws.
- B. The 2013 law includes the Prime Minister but excludes allegations relating to international relations, external or internal security, public order, atomic energy and space, and requires enhanced approval and confidentiality safeguards.
- C. The ARC treated government continuity under the Westminster model as the reason to keep a sitting Prime Minister outside formal Lok Pal inquiry, relying on Parliamentary confidence rather than claiming personal immunity from accountability.
- D. A State Anti-Corruption Bureau ordinarily performs police investigation within the State framework, while a Lokayukta performs the ombudsman role assigned by its State law; exact powers must be checked jurisdiction by jurisdiction.

Answer: A

Explanation: Lokayukta design remains heterogeneous across States is the controlling principle. The 2013 law required States to establish Lokayuktas within one year of commencement but did not prescribe one uniform national model; composition, jurisdiction, powers, appointment arrangements and practical independence therefore vary under State laws. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 38

A reform compares State laws before proposing common minimum safeguards. Which heterogeneity is it addressing? Which source-grounded ethical principle most precisely explains the case?

- A. The ARC treated government continuity under the Westminster model as the reason to keep a sitting Prime Minister outside formal Lok Pal inquiry, relying on Parliamentary confidence rather than claiming personal immunity from accountability.
- B. The 2013 law required States to establish Lokayuktas within one year of commencement but did not prescribe one uniform national model; composition, jurisdiction, powers, appointment arrangements and practical independence therefore vary under State laws.
- C. A State Anti-Corruption Bureau ordinarily performs police investigation within the State framework, while a Lokayukta performs the ombudsman role assigned by its State law; exact powers must be checked jurisdiction by jurisdiction.
- D. The 2013 law includes the Prime Minister but excludes allegations relating to international relations, external or internal security, public order, atomic energy and space, and requires enhanced approval and confidentiality safeguards.

Answer: B

Explanation: Lokayukta design remains heterogeneous across States is the controlling principle. The 2013 law required States to establish Lokayuktas within one year of commencement but did not prescribe one uniform national model; composition, jurisdiction, powers, appointment arrangements and practical independence therefore vary under State laws. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 39

A candidate copies the central Lokpal-CBI relationship onto every State without examining State law. Which institutional mistake occurs? Which source-grounded ethical principle most precisely explains the case?

- A. The 2013 law includes the Prime Minister but excludes allegations relating to international relations, external or internal security, public order, atomic energy and space, and requires enhanced approval and confidentiality safeguards.
- B. The ARC treated government continuity under the Westminster model as the reason to keep a sitting Prime Minister outside formal Lok Pal inquiry, relying on Parliamentary confidence rather than claiming personal immunity from accountability.
- C. A State Anti-Corruption Bureau ordinarily performs police investigation within the State framework, while a Lokayukta performs the ombudsman role assigned by its State law; exact powers must be checked jurisdiction by jurisdiction.
- D. The 2013 law required States to establish Lokayuktas within one year of commencement but did not prescribe one uniform national model; composition, jurisdiction, powers, appointment arrangements and practical independence therefore vary under State laws.

Answer: C

Explanation: State ACB and Lokayukta roles are not nationally uniform is the controlling principle. A State Anti-Corruption Bureau ordinarily performs police investigation within the State framework, while a Lokayukta performs the ombudsman role assigned by its State law; exact powers must be checked jurisdiction by jurisdiction. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 40

A State complaint is routed after checking the relevant Lokayukta Act and ACB police competence. Which precision rule is followed? Which source-grounded ethical principle most precisely explains the case?

- A. The ARC treated government continuity under the Westminster model as the reason to keep a sitting Prime Minister outside formal Lok Pal inquiry, relying on Parliamentary confidence rather than claiming personal immunity from accountability.
- B. The 2013 law required States to establish Lokayuktas within one year of commencement but did not prescribe one uniform national model; composition, jurisdiction, powers, appointment arrangements and practical independence therefore vary under State laws.
- C. The 2013 law includes the Prime Minister but excludes allegations relating to international relations, external or internal security, public order, atomic energy and space, and requires enhanced approval and confidentiality safeguards.
- D. A State Anti-Corruption Bureau ordinarily performs police investigation within the State framework, while a Lokayukta performs the ombudsman role assigned by its State law; exact powers must be checked jurisdiction by jurisdiction.

Answer: D

Explanation: State ACB and Lokayukta roles are not nationally uniform is the controlling principle. A State Anti-Corruption Bureau ordinarily performs police investigation within the State framework, while a Lokayukta performs the ombudsman role assigned by its State law; exact powers must be checked jurisdiction by jurisdiction. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 41

Separate bodies investigate the Minister and official without sharing the common transaction record. Which coordination failure follows? Which source-grounded ethical principle most precisely explains the case?

- A. A corruption allegation joining political direction and bureaucratic execution should not be split into isolated fragments; lawful Lokpal, CVC, departmental and investigating roles must exchange records through a clear lead-and-referral design.
- B. Lokpal's broad jurisdiction and power over referred matters complement rather than abolish CVC vigilance functions, CVO departmental work, CBI investigation, prosecution through competent officers and adjudication by courts.
- C. Enactment, appointment, creation of internal wings, receipt of complaints, completed inquiry, prosecution and final adjudication are different milestones; institutional evaluation must use verified stage-wise evidence rather than symbolic existence.
- D. A sound reform clarifies jurisdiction, interoperable records, referral deadlines, independence and public reporting while preserving functional separation; concentrating complaint, investigation, prosecution and judgment in one body would create fresh arbitrariness.

Answer: A

Explanation: Minister-official collusion requires coordinated jurisdiction is the controlling principle. A corruption allegation joining political direction and bureaucratic execution should not be split into isolated fragments; lawful Lokpal, CVC, departmental and investigating roles must exchange records through a clear lead-and-referral design. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 42

One forum preserves the complete allegation and assigns institution-specific tasks with deadlines. Which organic-link principle is being applied? Which source-grounded ethical principle most precisely explains the case?

- A. Enactment, appointment, creation of internal wings, receipt of complaints, completed inquiry, prosecution and final adjudication are different milestones; institutional evaluation must use verified stage-wise evidence rather than symbolic existence.
- B. A corruption allegation joining political direction and bureaucratic execution should not be split into isolated fragments; lawful Lokpal, CVC, departmental and investigating roles must exchange records through a clear lead-and-referral design.
- C. A sound reform clarifies jurisdiction, interoperable records, referral deadlines, independence and public reporting while preserving functional separation; concentrating complaint, investigation, prosecution and judgment in one body would create fresh arbitrariness.
- D. Lokpal's broad jurisdiction and power over referred matters complement rather than abolish CVC vigilance functions, CVO departmental work, CBI investigation, prosecution through competent officers and adjudication by courts.

Answer: B

Explanation: Minister-official collusion requires coordinated jurisdiction is the controlling principle. A corruption allegation joining political direction and bureaucratic execution should not be split into isolated fragments; lawful Lokpal, CVC, departmental and investigating roles must exchange records through a clear lead-and-referral design. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 43

An answer claims the 2013 law made CVC, CVOs and CBI legally unnecessary. Which systems principle corrects it? Which source-grounded ethical principle most precisely explains the case?

- A. A corruption allegation joining political direction and bureaucratic execution should not be split into isolated fragments; lawful Lokpal, CVC, departmental and investigating roles must exchange records through a clear lead-and-referral design.
- B. Enactment, appointment, creation of internal wings, receipt of complaints, completed inquiry, prosecution and final adjudication are different milestones; institutional evaluation must use verified stage-wise evidence rather than symbolic existence.
- C. Lokpal's broad jurisdiction and power over referred matters complement rather than abolish CVC vigilance functions, CVO departmental work, CBI investigation, prosecution through competent officers and adjudication by courts.
- D. A sound reform clarifies jurisdiction, interoperable records, referral deadlines, independence and public reporting while preserving functional separation; concentrating complaint, investigation, prosecution and judgment in one body would create fresh arbitrariness.

Answer: C

Explanation: An overarching body does not erase specialist bodies is the controlling principle. Lokpal's broad jurisdiction and power over referred matters complement rather than abolish CVC vigilance functions, CVO departmental work, CBI investigation, prosecution through competent officers and adjudication by courts. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 44

A reform keeps specialist capacity while establishing common referral and progress-review rules. Which institutional logic is shown? Which source-grounded ethical principle most precisely explains the case?

- A. Enactment, appointment, creation of internal wings, receipt of complaints, completed inquiry, prosecution and final adjudication are different milestones; institutional evaluation must use verified stage-wise evidence rather than symbolic existence.
- B. A sound reform clarifies jurisdiction, interoperable records, referral deadlines, independence and public reporting while preserving functional separation; concentrating complaint, investigation, prosecution and judgment in one body would create fresh arbitrariness.
- C. A corruption allegation joining political direction and bureaucratic execution should not be split into isolated fragments; lawful Lokpal, CVC, departmental and investigating roles must exchange records through a clear lead-and-referral design.
- D. Lokpal's broad jurisdiction and power over referred matters complement rather than abolish CVC vigilance functions, CVO departmental work, CBI investigation, prosecution through competent officers and adjudication by courts.

Answer: D

Explanation: An overarching body does not erase specialist bodies is the controlling principle. Lokpal's broad jurisdiction and power over referred matters complement rather than abolish CVC vigilance functions, CVO departmental work, CBI investigation, prosecution through competent officers and adjudication by courts. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 45

A report calls an institution fully effective merely because its statute exists. Which evaluation error has occurred? Which source-grounded ethical principle most precisely explains the case?

- A. Enactment, appointment, creation of internal wings, receipt of complaints, completed inquiry, prosecution and final adjudication are different milestones; institutional evaluation must use verified stage-wise evidence rather than symbolic existence.
- B. A corruption allegation joining political direction and bureaucratic execution should not be split into isolated fragments; lawful Lokpal, CVC, departmental and investigating roles must exchange records through a clear lead-and-referral design.
- C. Lokpal's broad jurisdiction and power over referred matters complement rather than abolish CVC vigilance functions, CVO departmental work, CBI investigation, prosecution through competent officers and adjudication by courts.
- D. A sound reform clarifies jurisdiction, interoperable records, referral deadlines, independence and public reporting while preserving functional separation; concentrating complaint, investigation, prosecution and judgment in one body would create fresh arbitrariness.

Answer: A

Explanation: Performance cannot be inferred from legal existence is the controlling principle. Enactment, appointment, creation of internal wings, receipt of complaints, completed inquiry, prosecution and final adjudication are different milestones; institutional evaluation must use verified stage-wise evidence rather than symbolic existence. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 46

An assessment separately measures timeliness, referral quality, investigation, prosecution and final outcomes. Which performance discipline is used? Which source-grounded ethical principle most precisely explains the case?

- A. Lokpal's broad jurisdiction and power over referred matters complement rather than abolish CVC vigilance functions, CVO departmental work, CBI investigation, prosecution through competent officers and adjudication by courts.
- B. Enactment, appointment, creation of internal wings, receipt of complaints, completed inquiry, prosecution and final adjudication are different milestones; institutional evaluation must use verified stage-wise evidence rather than symbolic existence.
- C. A sound reform clarifies jurisdiction, interoperable records, referral deadlines, independence and public reporting while preserving functional separation; concentrating complaint, investigation, prosecution and judgment in one body would create fresh arbitrariness.
- D. A corruption allegation joining political direction and bureaucratic execution should not be split into isolated fragments; lawful Lokpal, CVC, departmental and investigating roles must exchange records through a clear lead-and-referral design.

Answer: B

Explanation: Performance cannot be inferred from legal existence is the controlling principle. Enactment, appointment, creation of internal wings, receipt of complaints, completed inquiry, prosecution and final adjudication are different milestones; institutional evaluation must use verified stage-wise evidence rather than symbolic existence. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 47

A proposal gives one watchdog exclusive power to investigate, prosecute and finally determine guilt. Which institutional risk does it create? Which source-grounded ethical principle most precisely explains the case?

- A. A corruption allegation joining political direction and bureaucratic execution should not be split into isolated fragments; lawful Lokpal, CVC, departmental and investigating roles must exchange records through a clear lead-and-referral design.
- B. Lokpal's broad jurisdiction and power over referred matters complement rather than abolish CVC vigilance functions, CVO departmental work, CBI investigation, prosecution through competent officers and adjudication by courts.
- C. A sound reform clarifies jurisdiction, interoperable records, referral deadlines, independence and public reporting while preserving functional separation; concentrating complaint, investigation, prosecution and judgment in one body would create fresh arbitrariness.
- D. Enactment, appointment, creation of internal wings, receipt of complaints, completed inquiry, prosecution and final adjudication are different milestones; institutional evaluation must use verified stage-wise evidence rather than symbolic existence.

Answer: C

Explanation: Reform should improve coherence without creating a mega-agency is the controlling principle. A sound reform clarifies jurisdiction, interoperable records, referral deadlines, independence and public reporting while preserving functional separation; concentrating complaint, investigation, prosecution and judgment in one body would create fresh arbitrariness. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 48

A protocol coordinates bodies but keeps courts and disciplinary authorities as independent decision forums. Which reform balance is achieved? Which source-grounded ethical principle most precisely explains the case?

- A. Lokpal's broad jurisdiction and power over referred matters complement rather than abolish CVC vigilance functions, CVO departmental work, CBI investigation, prosecution through competent officers and adjudication by courts.
- B. Enactment, appointment, creation of internal wings, receipt of complaints, completed inquiry, prosecution and final adjudication are different milestones; institutional evaluation must use verified stage-wise evidence rather than symbolic existence.
- C. A corruption allegation joining political direction and bureaucratic execution should not be split into isolated fragments; lawful Lokpal, CVC, departmental and investigating roles must exchange records through a clear lead-and-referral design.
- D. A sound reform clarifies jurisdiction, interoperable records, referral deadlines, independence and public reporting while preserving functional separation; concentrating complaint, investigation, prosecution and judgment in one body would create fresh arbitrariness.

Answer: D

Explanation: Reform should improve coherence without creating a mega-agency is the controlling principle. A sound reform clarifies jurisdiction, interoperable records, referral deadlines, independence and public reporting while preserving functional separation; concentrating complaint, investigation, prosecution and judgment in one body would create fresh arbitrariness. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

PYQS AND ANSWER PRACTICE

Solved PYQ 1 - 2019 - 10 marks

Question: GS-IV Q2(b): "Non-performance of duty by a public servant is a form of corruption". Do you agree with this view? Justify your answer. (150 words)

Source / ownership: Exact English wording verified against books\more_previous_papers\QP-CSM19-GeneralStudies-IV.pdf, page 2. Topic 20 uses the institutional-routing dimension; detailed offence ingredients remain Topic 19-owned.

Model solution

I agree only when non-performance is a culpable misuse of entrusted office. An official who wilfully delays an entitlement to extract payment, suppresses a credible vigilance reference or protects a connected contractor can confer improper advantage through omission. The institutional response should begin by identifying the duty, authority, knowledge, motive, harm and records. A departmental CVO may examine whether a vigilance angle exists; suspected criminality can then reach the competent investigating agency, while the disciplinary authority and court retain their distinct decision roles.

However, every failure is not corruption. Staff shortage, conflicting instructions, genuine legal uncertainty or a bona fide decision that later performs poorly may indicate capacity failure or negligence. Stigmatising these as corruption would deter initiative and undermine fair process.

Thus non-performance becomes ethically corrupt when deliberate or recklessly indifferent omission uses public power for improper advantage or foreseeable public harm. Investigation must establish facts; legal liability depends on Topic 19's statutory ingredients, not on the slogan alone.

Why this earns marks: It states the governing ethical idea, translates it into public administration, uses a concrete Indian illustration, acknowledges a limit, and ends with a reasoned verdict.

Solved PYQ 2 - 2019 - 10 marks

Question: GS-IV Q5(a): What do you understand by probity in governance? Based on your understanding of the term, suggest measures for ensuring probity in government. (150 words)

Source / ownership: Exact English wording verified against books\more_previous_papers\QP-CSM19-GeneralStudies-IV.pdf, page 3. Topic 14 owns the complete probity concept; Topic 20 supplies institution-specific enforcement and coordination.

Model solution

Probity is demonstrable rectitude in public power: legality, impartiality, integrity, transparency, reasoned discretion and answerability must be visible in decisions, not merely claimed as personal virtue. Institutions make probity credible. Departments need CVO-led preventive vigilance, conflict declarations, speaking records and safe complaint handling. The CVC should provide vigilance advice and exercise its specified superintendence without being described as a criminal court. CBI or State ACBs investigate within lawful jurisdiction; Lokpal or the relevant Lokayukta handles complaints within its enacted remit; courts adjudicate guilt.

The ARC's multiplicity diagnosis shows why these bodies need referral protocols, common record preservation and time-bound follow-up. Independence must be matched by reasons, aggregate reporting, audit and judicial review. Technology can preserve trails but cannot decide motive or guilt.

Probity therefore requires both ethical culture and stage-separated institutions. The best system makes wrongdoing difficult, detection credible, investigation competent and punishment lawful while protecting bona fide administration from allegation-based condemnation.

Why this earns marks: It states the governing ethical idea, translates it into public administration, uses a concrete Indian illustration, acknowledges a limit, and ends with a reasoned verdict.

Solved PYQ 3 - 2019 - 20 marks

Question: GS-IV Q12: India seeks effective civil-service ethics, codes of conduct, transparency measures, ethics and integrity systems and anti-corruption agencies. Suggest institutional measures for anticipating threats, strengthening ethical competence and developing processes that promote integrity. (250 words)

Source / ownership: Faithful condensed routing of the English demand verified against books\more_previous_papers\QP-CSM19-GeneralStudies-IV.pdf, page 7. The official paper contains the complete enumerated stem. Topic 20 owns anti-corruption institutional coherence; Topics 15-16 own codes and Topic 21 owns honest-official safeguards.

Model solution

The demand has three linked levels. First, anticipate threats through department-wise integrity-risk maps covering procurement, licensing, inspection, transfers and grants. CVOs should analyse complaint, audit and disciplinary patterns, while leadership reviews concentration of discretion and repeated control failures. This is preventive vigilance, not a presumption of guilt.

Second, strengthen competence through scenario-based training on conflicts, written reasons, lawful directions, evidence preservation and institution choice. Officials should know that CVC advice, CBI investigation, Lokpal jurisdiction, disciplinary proceedings, prosecution and judicial adjudication are not interchangeable. Safe consultation and mentoring should precede crisis.

Third, build a coherent process. Complaints need triage, confidentiality, acknowledgement, jurisdiction checks and time-bound referral. The CVC-CVO network should connect preventive and departmental vigilance; CBI or State ACBs should investigate within federal limits; Lokpal or Lokayukta should exercise enacted ombudsman powers; competent prosecutors and courts should complete the consequence chain. Shared case identifiers and record protocols can prevent duplication without creating a mega-agency.

Independence requires secure tenure and resources, but also reasons, audit, legislative reporting and judicial review. The ARC's organic-link principle is useful: coordinate specialist institutions while preserving their autonomy. An integrity system succeeds when prevention, voice, competent investigation, fair adjudication and institutional learning reinforce one another.

Why this earns marks: It states the governing ethical idea, translates it into public administration, uses a concrete Indian illustration, acknowledges a limit, and ends with a reasoned verdict.

Solved PYQ 4 - 2021 - 15 marks

Question: GS-II Q11: The jurisdiction of the Central Bureau of Investigation (CBI) regarding lodging an FIR and conducting probe within a particular State is being questioned by various States. However, the power of the States to withhold consent to the CBI is not absolute. Explain with special reference to the federal character of India. (250 words)

Source / ownership: Exact English wording verified against books\more_previous_papers\QP-CSM-21-GENSTUDIESPAPER-II-110122.pdf, page 3. This GS-II overlap is Topic 20's direct federal-jurisdiction PYQ; detailed offence law remains outside scope.

Model solution

CBI's police powers arise through the Delhi Special Police Establishment Act, 1946. The Union may extend DSPE jurisdiction to a State, but ordinary exercise of those powers there requires State consent. Consent may be general or case-specific; withdrawal of general consent therefore requires fresh jurisdictional care for new investigations. This protects police as a State responsibility and prevents routine Union displacement of the State machinery.

The power is nevertheless not absolute. In *State of West Bengal v. Committee for Protection of Democratic Rights* (2010), the Supreme Court held that constitutional courts may order a CBI inquiry without State consent. The Supreme Court's Article 32 and High Courts' Article 226 powers protect fundamental rights and constitutional justice; ordinary legislation cannot disable them. Because such orders affect federal balance, courts should use the power sparingly and on recorded grounds.

The correct synthesis is cooperative federalism, not institutional supremacy. The Union cannot treat CBI as a general national police force free of the DSPE consent structure, while a State cannot convert consent into immunity from constitutional review. Clear consent records, prompt intergovernmental requests, judicial restraint and independent investigation preserve both federal autonomy and credible accountability.

Why this earns marks: It states the governing ethical idea, translates it into public administration, uses a concrete Indian illustration, acknowledges a limit, and ends with a reasoned verdict.

Solved PYQ 5 - 2021 - 10 marks

Question: GS-IV Q6(a): An independent and empowered social audit mechanism is an absolute must in every sphere of public service, including judiciary, to ensure performance, accountability and ethical conduct. Elaborate. (150 words)

Source / ownership: Exact English wording verified against books\more_previous_papers\QP-CSM-21-GENSTUDIESPAPER-IV-110122.pdf, page 3. Social audit is mainly Topic 11/18 material; Topic 20 uses it as detection and referral, not adjudication.

Model solution

Social audit allows affected citizens to compare official records with lived delivery, exposing ghost beneficiaries, absent works, exclusion and local coercion. Its anti-corruption value is detection and voice: it can generate a documented complaint, preserve witness accounts and reveal patterns that a remote vigilance body may miss.

Its institutional boundary is equally important. A social-audit finding is not a conviction. Suspected departmental misconduct should reach the competent authority or CVO; criminal evidence should go to the lawful State ACB, CBI or other investigating body; a matter within Lokpal or Lokayukta jurisdiction should be referred there. Prosecution and adjudication require their own safeguards.

Independence needs access to usable records, facilitation separate from implementation, protection from retaliation, public hearings and action-taken reports. Application to the judiciary must respect decisional independence: administration and expenditure can be scrutinised, while merits of judgments follow appeal and review. Social audit strengthens the detection layer when it connects evidence to a competent, fair consequence chain.

Why this earns marks: It states the governing ethical idea, translates it into public administration, uses a concrete Indian illustration, acknowledges a limit, and ends with a reasoned verdict.

Solved PYQ 6 - 2022 - 10 marks

Question: GS-IV Q6(a): Whistle-blower, who reports corruption and illegal activities, wrongdoing and misconduct to the concerned authorities, runs the risk of being exposed to grave danger, physical harm and victimization by vested interests, accused persons and his team. What policy measures would you suggest to strengthen protection mechanism to safeguard the whistle-blower? (150 words)

Source / ownership: Exact English wording verified against books\more_previous_papers\QP-CSM-22-GENERAL-STUDIES-PAPER IV-190922.pdf, page 4. Topic 20 addresses authorised institutional channels; detailed whistleblower and honest-official protection belongs to Topics 19 and 21.

Model solution

Protection begins with a safe authorised channel, not merely a promise of secrecy. Complaints should receive secure intake, identity separation, restricted access, risk assessment, acknowledgement and time-bound jurisdictional routing. Central vigilance complaints within the PIDPI framework may reach the CVC; matters within Lokpal jurisdiction should follow its complaint process; suspected offences must reach the competent investigating agency. The recipient must not circulate identity casually among the accused chain.

Policy should prohibit retaliation, permit interim transfer or security support where risk is credible, preserve service benefits, penalise retaliators and provide independent review when the employer is implicated. Digital systems need access logs and breach accountability. Anonymous allegations may offer leads, but confidentiality should not be confused with anonymity under a formal protection mechanism.

Institutional separation protects both sides: a complaint triggers screening, not guilt; investigation tests evidence; prosecution and courts decide consequence. Detailed statutory status and safeguards belong to Topics 19 and 21. Topic 20's central lesson is that protection fails when the authorised channel cannot preserve identity, jurisdiction and follow-up.

Why this earns marks: It states the governing ethical idea, translates it into public administration, uses a concrete Indian illustration, acknowledges a limit, and ends with a reasoned verdict.

Solved PYQ 7 - 2022 - 20 marks

Question: Neutral routing of GS-IV Q10: an investigative journalist uncovers a stone-mining mafia linked with corrupt police, civil officials and a politically connected media owner, but faces inducement and pressure to suppress the report. Evaluate options, dilemmas and the appropriate response. (250 words)

Source / ownership: Neutral demand faithfully routed from books\more_previous_papers\QP-CSM-22-GENERAL-STUDIES-PAPER IV-190922.pdf, page 10. Topic 20 uses the multi-agency and State-institution dimension; Topic 22 owns full case-study method.

Model solution

The facts indicate networked corruption: illegal extraction, police protection, administrative facilitation, political influence and media ownership can disable ordinary complaint channels. The journalist should not accept the inducement or surrender the only evidence, but immediate sensational publication may expose sources and compromise investigation. He should authenticate records, preserve copies and chronology, obtain independent legal-editorial review and assess physical risk.

Institutionally, the route depends on jurisdiction. State police vigilance or the State ACB ordinarily investigates corruption within the State framework; the State Lokayukta may have a role defined by its own law. If local machinery is demonstrably compromised, judicial remedies or another lawfully competent forum may be necessary. CBI entry cannot be assumed without DSPE consent, case-specific authority or a constitutional-court direction. Lokpal is not a universal forum for State political corruption.

The response must also attack the network: secure witnesses, trace permits and money, review sensitive postings, reconcile transport and royalty data and separate investigation from political command. Publication, if used, should minimise unrelated personal data and protect sources. The case demonstrates why institutional independence, federal precision and multiple protected escalation routes are essential when the first-line agency is captured.

Why this earns marks: It states the governing ethical idea, translates it into public administration, uses a concrete Indian illustration, acknowledges a limit, and ends with a reasoned verdict.

Solved PYQ 8 - 2023 - 10 marks

Question: GS-IV Q2(a): "Corruption is the manifestation of the failure of core values in the society." In your opinion, what measures can be adopted to uplift the core values in the society? (150 words)

Source / ownership: Exact English wording verified against books\more_previous_papers\QP-CSM-23-GENERAL-STUDIES-PAPER-IV-180923.pdf, page 2. Values are Topic 1/2-owned; Topic 20 supplies the institutional complement to moral formation.

Model solution

Corruption reflects weakened honesty, fairness and public spirit, but values operate within incentives and institutions. Families, schools and public leaders should model respect for common resources, reject admiration of illicit wealth and teach that public office is a trust. Civil-service training should use real dilemmas involving conflict, pressure, reporting and reasoned refusal.

Moral education alone fails where wrongdoing is rewarded. CVO-led preventive vigilance, transparent criteria, CVC guidance, independent investigation, Lokpal or Lokayukta access within jurisdiction, protected complaints and fair courts make integrity practicable. The ARC's multiplicity diagnosis also requires coordinated referral, so citizens are not defeated by institutional buck-passing. Swift action must remain evidence-based; allegation-driven humiliation can itself corrode justice.

The durable strategy joins character with credible consequence. Institutions without values may become formalistic or captured, while values without institutions leave honest persons exposed. Core values rise when ethical conduct is socially respected, administratively feasible and supported by a coherent system that detects, investigates, adjudicates and learns.

Why this earns marks: It states the governing ethical idea, translates it into public administration, uses a concrete Indian illustration, acknowledges a limit, and ends with a reasoned verdict.

Solved PYQ 9 - 2023 - 10 marks

Question: GS-IV Q5(b): 'Probity is essential for an effective system of governance and socio-economic development.' Discuss. (150 words)

Source / ownership: Exact English wording verified against books\more_previous_papers\QP-CSM-23-GENERAL-STUDIES-PAPER-IV-180923.pdf, page 4. Topic 14 owns the general concept; Topic 20 supplies the anti-corruption institutional mechanism.

Model solution

Probity makes public decisions lawful, impartial, transparent and demonstrably directed to public purpose. It improves development because citizens and firms can rely on fair rules, scarce resources reach intended uses and honest officials are not displaced by patronage. Yet probity cannot depend only on personal virtue.

Institutional support is stage-specific. Departmental CVOs reduce opportunity and examine vigilance concerns; the CVC advises and exercises specified superintendence; CBI or State ACBs investigate within lawful federal jurisdiction; Lokpal and State-specific Lokayuktas provide ombudsman routes; prosecutors present cases and courts adjudicate. Clear referrals and shared records address the ARC's warning about overlapping institutions. Reasons, hearing and review prevent vigilance from becoming arbitrary.

Probity therefore produces both ethical legitimacy and economic reliability. However, the existence of watchdogs does not prove effectiveness: staffing, independence, timeliness, coordination and follow-up must be verified. Development is best served when prevention, investigation and lawful consequence coexist with protection for bona fide decisions.

Why this earns marks: It states the governing ethical idea, translates it into public administration, uses a concrete Indian illustration, acknowledges a limit, and ends with a reasoned verdict.

ORIGINAL MAINS PRACTICE WITH MODEL SOLUTIONS

Original Mains Practice 1 - 10 marks

Question: Differentiate the roles of the CVC, CBI and Lokpal in India's anti-corruption architecture. Answer in about 150 words.

Model solution

The three institutions occupy connected but distinct positions. The CVC is a statutory vigilance body. It advises the Union system, exercises superintendence over DSPE corruption investigations within its specified remit and reviews vigilance administration; it does not adjudicate criminal guilt. The CBI is an investigating agency whose police powers derive from the DSPE Act. It gathers evidence within lawful territorial jurisdiction, while prosecution and the court complete later stages.

Lokpal is the ombudsman created by the 2013 law for the Prime Minister subject to safeguards, Union Ministers, MPs, central officials and specified bodies. It may order preliminary inquiry and refer or direct investigation, including through CBI in appropriate cases. It complements rather than abolishes CVC and CBI.

The ARC's organic-link principle explains the relationship: political and administrative aspects of one transaction need coordinated handling, but advice, inquiry, investigation, prosecution and adjudication must not collapse. Role precision protects both effectiveness and due process.

Why this earns marks: The response defines the issue, develops the relevant mechanism with India-centric evidence, tests a limitation, and gives a mark-scaled conclusion.

Original Mains Practice 2 - 10 marks

Question: Why is State consent for CBI investigation important, and why is it not an absolute constitutional veto? Answer in about 150 words.

Model solution

State consent reflects India's federal distribution of police responsibility. Under the DSPE Act, extension of Delhi Special Police Establishment powers to a State ordinarily requires that State's consent. General consent enables a category of cases; after its withdrawal, fresh investigations need case-specific authority unless another lawful basis exists. The Union executive therefore cannot treat CBI as a general national police force.

Consent is not an absolute constitutional veto. In *State of West Bengal v. Committee for Protection of Democratic Rights* (2010), the Supreme Court held that the Supreme Court under Article 32 and High Courts under Article 226 may order a CBI investigation without State consent to enforce constitutional rights. That exceptional power should be used cautiously because routine use would weaken federal balance.

The synthesis is cooperative federalism: respect statutory consent in ordinary administration, permit reasoned constitutional intervention where justice requires it, and preserve investigation from both Union and State political control.

Why this earns marks: The response defines the issue, develops the relevant mechanism with India-centric evidence, tests a limitation, and gives a mark-scaled conclusion.

Original Mains Practice 3 - 15 marks

Question: Compare the Second ARC's 2007 Lok Pal proposal with the Lokpal enacted under the Lokpal and Lokayuktas Act, 2013. Answer in about 200 words.

Model solution

The ARC proposed a lean three-member Lok Pal: a serving or retired Supreme Court judge as Chair, an eminent jurist and the CVC ex officio. Its jurisdiction centred on Union Ministers and MPs. It excluded formal inquiry into a sitting Prime Minister, reasoning that Westminster government depends on the Prime Minister's Parliamentary confidence and that an inquiry could destabilise governance. It also envisaged an organic link in which CVC retained functional autonomy under the Lok Pal's overall guidance.

The 2013 Act enacted a different institution: a Chairperson and not more than eight Members, with at least half judicial Members and a statutory representation requirement. Jurisdiction extends to the Prime Minister subject to subject-matter exclusions, full-bench consideration, a two-thirds threshold and confidentiality; it also covers Ministers, MPs, central officials and specified funded bodies. Inquiry, investigation and prosecution mechanisms are correspondingly broader.

The difference reflects competing design values. ARC prioritised focus, judicial anchoring and continuity; the enacted model prioritised comprehensive coverage and representative legitimacy after later political mobilisation. Neither should be misquoted as the other. A strong answer treats the 2007 recommendation and 2013 law as related but separate historical facts.

Why this earns marks: The response defines the issue, develops the relevant mechanism with India-centric evidence, tests a limitation, and gives a mark-scaled conclusion.

Original Mains Practice 4 - 15 marks

Question: Assess whether the Lokpal and Lokayuktas Act resolved the multiplicity and coherence problem identified by the Second ARC. Answer in about 200 words.

Model solution

The Act improved coherence by creating an overarching central ombudsman with jurisdiction over high political functionaries, central officials and specified bodies. Lokpal can order preliminary inquiry, refer investigation and exercise direction over agencies in referred matters. This reduces the risk that a Minister-official collusion allegation is divided between political and bureaucratic silos. The later constitution of dedicated Inquiry and Prosecution Wings strengthens the visible stage architecture.

The ARC's problem is nevertheless only partly resolved. CVC, departmental CVOs, CBI, disciplinary authorities and courts retain distinct statutes and functions; coordination depends on practical referral, record-sharing and timelines. At State level, the central law required Lokayuktas but prescribed no uniform model. State Lokayukta and ACB powers therefore remain heterogeneous. More bodies can reproduce delay, forum shopping, evidence fragmentation or needless duplication if responsibility is unclear.

Reform should establish common case identifiers, lead-agency rules, protected evidence exchange, reasoned referrals and stage-wise public reporting while preserving due process and specialist autonomy. The goal is not one mega-agency. Coherence means connected responsibility across inquiry, investigation, prosecution and adjudication, not institutional merger.

Why this earns marks: The response defines the issue, develops the relevant mechanism with India-centric evidence, tests a limitation, and gives a mark-scaled conclusion.

Original Mains Practice 5 - 20 marks

Question: Design a coordinated anti-corruption process for a complaint alleging collusion between a Union Minister, senior officials and a private beneficiary. Answer in about 250 words.

Model solution

The complaint should enter through a secure channel with identity protection, transaction details and record-preservation instructions. Initial triage must test whether the allegation concerns corruption, which persons and bodies fall within Lokpal jurisdiction, whether departmental vigilance issues coexist and whether urgent steps are needed to prevent evidence loss. Publicity should not precede verification.

Lokpal can preserve the complete collusion allegation rather than fragmenting the Minister and officials. It may order preliminary inquiry through its Inquiry Wing or another competent agency. The departmental CVO can secure internal files and identify control failures; CVC can perform its statutory vigilance and specified superintendence roles. If full investigation is ordered through CBI, lawful evidence gathering, financial and decision trails, witness protection and technical expertise should follow. No body should direct a predetermined finding.

After investigation, prosecution must be handled through the legally competent route and adjudication left to the court. Departmental proceedings may address service responsibility under their own standard and safeguards without being confused with criminal conviction. Aggregate progress reporting should avoid prejudicing trial or exposing complainants.

System repair should continue alongside individual accountability: disclose conflicts, redesign the licensing or procurement process, separate sensitive roles, review beneficial ownership and close the control gap. The ARC's organic-link principle supplies the design thesis-one transaction, coordinated institutions, preserved functional autonomy. Effectiveness comes from clear lead responsibility, deadlines and evidence exchange; legitimacy comes from confidentiality, hearing, reasons, review and independent adjudication.

Why this earns marks: The response defines the issue, develops the relevant mechanism with India-centric evidence, tests a limitation, and gives a mark-scaled conclusion.

Original Mains Practice 6 - 20 marks

Question: Critically evaluate the qualified jurisdiction of Lokpal over the Prime Minister as an accountability-continuity compromise. Answer in about 250 words.

Model solution

The accountability case is strong: democratic office cannot become personal immunity, and excluding the highest executive office entirely could weaken equality before public standards. The 2013 Act therefore includes the Prime Minister. Yet it excludes allegations relating to international relations, external and internal security, public order, atomic energy and space. An inquiry requires full-bench consideration, approval by at least two-thirds of Members and in-camera proceedings; dismissal brings strict record confidentiality.

These safeguards answer part of the ARC's continuity concern. The ARC had argued that a formal inquiry could damage the Parliamentary-confidence-based authority on which Westminster government rests, even if the allegation later fails. The enacted model substitutes a high threshold and protected process for the ARC's exclusion, balancing answerability with protection against frivolous destabilisation.

The compromise remains imperfect. Subject-matter exclusions may shield mixed decisions where security and commercial considerations overlap. Conversely, even a confidential inquiry can create political paralysis if leaked. A high threshold may prevent harassment but can also make scrutiny unusually difficult. Parliamentary accountability, judicial review, electoral judgment and ordinary institutional checks therefore remain important.

The defensible verdict is qualified inclusion rather than either absolute exemption or routine inquiry. Periodic review should examine whether complaints are filtered by reasons rather than political convenience, whether confidentiality works and whether excluded subjects are construed narrowly. Accountability should remain publicly credible without allowing accusation alone to destabilise constitutional government or institutional trust.

Why this earns marks: The response defines the issue, develops the relevant mechanism with India-centric evidence, tests a limitation, and gives a mark-scaled conclusion.